# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Direction/Order

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | Direction/Order |
| **To** | |
| **CC** | |

Andrew.Dillon@ags.gov.au
Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order |
| **Message** | Dear Parites<br><br>Please find attached a copy of a Direction in this matter.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 19/07/2023 | 2023-378257 | | | | Directions - Joinder of cases by association SEALED | 1 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## 26/06/2023 - Notice of Application

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Tribunal Officer |
| **Standard Text** | |
| **Subject Description** | Notice of Application |
| **To** | |
| **CC** | |

legal@ndiscommission.gov.au

| | |
|---|---|
| **Subject** | 2023/4494 - RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission - Notice of Application |
| **Message** | Dear Sir/Madam<br><br>Please find attached notice of an application for review of a decision under section 29 of the Administrative Appeals Tribunal Act 1975.<br><br>Yours sincerely |
| **Sent By** | Jessica F s47E(c) |
| **Date** | 26/06/2023 |
| **Time** | 5:43PM |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 26/06/2023 | 2023-331709 | C03 Acknowledging receipt, Notifying other parties, Listing, T documents and Outreach | C03.02 : General application: notice to respondent | Commissioner of the NDIS Quality and Safeguards Commission | | 1 |

**Received Documents in TRACS**

| Date Received | Document Type | Received From | Doc No. | File Name | Description |
|---|---|---|---|---|---|
| 26/06/2023 | Application for review | Forward Focused Group Pty Ltd | 1/2 | FW_ Forward Focused Group Pty Ltd - COVER EMAIL Application.pdf | |
| 26/06/2023 | Application for review | Forward Focused Group Pty Ltd | 2/2 | 23_06_26 - FFG - AAT Application.pdf | |
| 26/06/2023 | Reviewable decision | Forward Focused Group Pty Ltd | 1/1 | 23_06_09 - Notice of Internal Review Decision and Statement of Reasons - FFG[33].pdf | |
| 26/06/2023 | Correspondence | Forward Focused Group Pty Ltd | 1/2 | 22_12_20 - Ltr frm NDIS Commission re Notice of Banning Order_Forward Focused Group Pty Ltd.pdf | |
| 26/06/2023 | Correspondence | Forward Focused Group Pty Ltd | 2/2 | 23_01_25 - Ltr to NDIS Q&S Commission re RoRD Request.pdf | |

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | **)** | |
| | **)** | No: 2023/3361 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | **)** | |

Re: Vida Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | **)** | |
| | **)** | No: 2023/3363 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | **)** | |

Re: Simon Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | **)** | |
| | **)** | No: 2023/4494 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | **)** | |

Re: Forward Focused Group Pty Ltd
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTIONS FOR JOINDER OF MATTERS**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 19 July 2023

**PLACE:** Perth

1. Application 2023/3364 of Forward Focused Group Pty Ltd, having now been withdrawn and is to be disassociated from application numbers 2023/3361 of Vida Reid and 2023/3363 of Simon Reid.

2. Application number 2023/4494 of Forward Focused Group Pty Ltd and application numbers 2023/3361 of Vida Reid and 2023/3363 of Simon Reid are to be joined as

associated cases and programmed and heard together, and the evidence in any one application, subject to relevance, be taken as evidence in the other applications.




.....

**Deputy President**

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Direction/Order

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | Direction/Order |
| **To** | |
| **CC** | |

Tom Monks <info@tomandcolegal.com.au>
Andrew.Dillon@ags.gov.au
Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order |
| **Message** | Dear Parties<br><br>Please find attached a copy of a Direction granting the Rspondent a further period of time to file T-Documents for the three now associated matters - 2023/3361 Vida Reid, 2023/3363 Simon Reid & 2023/4494 Forward Focused Group Pty Ltd.<br><br>Please note that now that three current applications have been associated, order and directions will only be sent out under the lead case - 2023/3361 (Vida Reid) but will also apply to the other two cases unless indicated otherwise by the Tribunal.<br><br>For the avoidance of doubt, this means that the Respondent is to now file their T-Documents in all three matters on of before 7 August 2023 in accordance with the attached direction.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 19/07/2023 | 2023-378390 | | | | Sealed | 1 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | **)** | No: 2023/3361 |
| | **)** | |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | **)** | |

Re: Vida Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**
**ALLOWING FURTHER PERIOD FOR LODGEMENT OF DOCUMENTS**
**Section 37(1) *Administrative Appeals Tribunal Act 1975* (Cth)**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 19 July 2023

**PLACE:** Perth

The Tribunal DIRECTS that:

Pursuant to section 37(1) of the *Administrative Appeals Tribunal Act 1975* (Cth) (the Act), the Respondent be allowed a further period until 7 August 2023 to lodge with the Tribunal the documents referred to in section 37(1) of the Act.

.....
**Deputy President**

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - General Correspondence

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Senior Tribunal Officer |
| **Standard Text** | |
| **Subject Description** | General Correspondence |
| **To** | |
| **CC** | |

Karlie Dickinson <karlie.dickinson@ags.gov.au>

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence |
| **Message** | Dear Ms Dickinson,<br><br>The Tribunal received the attached Request for Confidentiality Orders for reviews 2023/3361; 3363 and 4494.<br><br>Can you please confirm that the request is complete? It does not appear to identify the documents; sections and pages of the T-Documents over which the Order is sought.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - General Correspondence

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Senior Tribunal Officer |
| **Standard Text** | |
| **Subject Description** | General Correspondence |
| **To** | |
| **CC** | |

Karlie Dickinson <karlie.dickinson@ags.gov.au>

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence |
| **Message** | Dear Ms Dickinson,<br><br>The Tribunal received the attached Request for Confidentiality Orders for reviews 2023/3361; 3363 and 4494.<br><br>The Tribunal believes the document is incomplete. Please update the document with the identifying documents, page numbers and sections so that the request can be sent to the Applicants for comment.<br><br>Yours sincerely |
| **Sent By** | Jessica P s47E(c) |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

| Attached Date | Document Name |
|---|---|
| 09/08/2023 | 2023.3361 Confidentiality Order Request - Reid - D3WDJV - 20230808.pdf |

**ADMINISTRATIVE APPEALS TRIBUNAL**
**NATIONAL DISABILITY INSURANCE SCHEME DIVISION**
**PERTH REGISTRY** **2023/3361; 2023/3363; 2023/4494**

**VIDA REID**
**SIMON REID**
**FORWARD FOCUSSED GROUP**
Applicants

**COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION**
Respondent

**REQUEST FOR CONFIDENTIALITY ORDERS UNDER SECTION 35 OF THE *ADMINISTRATIVE APPEALS TRIBUNAL ACT* 1975**

**Orders sought:**

Under s 35(4) of the *Administrative Appeals Tribunal Act 1975* (Cth) (AAT Act), the Administrative Appeals Tribunal (the Tribunal) directs in the above proceedings:

1. because the T-documents … and … are subject to ongoing criminal proceedings and/or legal professional privilege, the documents are not subject to disclosure requirements under s 37(1)(b) of the AAT Act, and that the disclosure of these T-documents to the applicant or the public at large is prohibited;

2. because the **redacted text** in section … of T-document … (on pages … and … of the T-Docs Bundle is subject to legal professional privilege, the production of the contents of the redacted text to the applicant or the public at large is prohibited; and

3. because the T- document bundles are the subject to ongoing criminal proceedings, the disclosure of these documents to the public at large is prohibited (parties to have liberty to apply to amend this order); and

4. because of their likelihood to prejudice criminal proceedings and/or that legal professional privilege applies there be no publication or disclosure in the Tribunal's decision that reveals the contents of the T-documents … and ….nor the redacted text in section …..of T-document….(on pages…..and….of the T- Docs bundle) nor any of the T-document bundles that remain subject to order 2 above.

Date: 8 August 2023

Andrew Dillon
a/g Senior Executive lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent

Lodged on behalf of the Respondent
Contact: Karlie Dickinson

The Australian Government Solicitor
4 National Circuit
Barton ACT 2600
DX 5678 Canberra

File ref: 23004627
Telephone: 03 9244 1244
E-mail: Karlie.dickinson@ags.gov.au

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Listing Notice

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | Listing Notice |
| **To** | |
| **CC** | |

Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au
Karlie Dickinson <karlie.dickinson@ags.gov.au>

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice |
| **Message** | Dear Ms Dickinson<br><br>Please find attached a Listing Notice in this matter.<br><br>Please note that generally listings information is publicly available.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 28/08/2023 | 2023-449783 | | | | | 1 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

Administrative Appeals Tribunal

**National Disability Insurance Scheme Division**

Our Ref: 2023/3361 Contact Officer: Fiona C
Your Ref:

28 August 2023

Commissioner of the NDIS Quality and Safeguards Commission
C/- AUSTRALIAN GOVERNMENT SOLICITOR
GPO Box 2853
MELBOURNE VIC 3001

***Sent by email only***

Dear Sir/Madam

| | |
|---|---|
| **APPLICANT:** | **Vida Reid, Simon Reid and Forward Focused Group Pty Ltd** |
| **RESPONDENT:** | **Commissioner of the NDIS Quality and Safeguards Commission** |

This application has been listed as shown below:

**Interlocutory Hearing - Confidentiality order application**

Date: Tuesday, 12 September 2023
Time: 10:00AM AWST
Location: By Telephone

**What happens if you do not attend?**

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Natalie D
**For the Registrar**

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - General Correspondence

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Tribunal Officer |
| **Standard Text** | |
| **Subject Description** | General Correspondence |
| **To** | |
| **CC** | |

Karlie Dickinson <karlie.dickinson@ags.gov.au>

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence |
| **Message** | Dear Ms Dickinson<br><br>Thank you for your emails of 31 August 2023.<br><br>As requested, please find attached a copy of the Tribunal's correspondence, sent to Mr Monks, Tom & Co Legal, dated 10 August 2023.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 10/08/2023 | 2023-418595 | | | | | 2 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

Administrative Appeals Tribunal

**National Disability Insurance Scheme Division**

Our Ref: 2023/3361; 2023/3363; & 2023/4494 Contact Officer: Jessica P

10 August 2023

Vida Reid
C/- TOM & CO LEGAL
45 Delawney Street
BALCATTA WA 6021

Dear Mrs Reid

**APPLICANT:** **Vida Reid**
**RESPONDENT:** **Commissioner of the NDIS Quality and Safeguards Commission**

The respondent has sent us their documents. You should also have received an edited copy of them.

The respondent has asked us to make an order that some information in the documents given to us should be made available only to the AAT. A copy of that request is attached for your information.

Please contact us within **14 days** and tell us whether or not you oppose the respondent's application. You can use the attached form to do this.

If you oppose the application, please explain briefly why you oppose it. We usually hold a hearing before we make a decision about an opposed application and you will be notified of any hearing.

If you advise us that you do not oppose the application, we usually make a decision about it without holding a hearing.

**Do you want to know more?**

More information about us and how we conduct reviews is available on our website (www.aat.gov.au).

If you want further information or assistance, phone us on **1800 228 333***.

Yours sincerely

Jessica P
**For the Registrar**

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

* You will be connected to the AAT office in your capital city. Residents of northern NSW (postcodes 2460–2490) will be connected to the Brisbane office and residents of the Northern Territory will be connected to the Adelaide office. Calls from landlines are free. You may be charged for calls from mobile phones or payphones.

Administrative Appeals Tribunal

| | |
|---|---|
| FILE NUMBER | **2023/3361** |
| APPLICANT | **Vida Reid** |
| RESPONDENT | **Commissioner of the NDIS Quality and Safeguards Commission** |

**RESPONSE TO A REQUEST FOR A CONFIDENTIALITY ORDER**

*Please choose one:*

I **agree** to the request for the confidentiality order.

**OR**

I **do not agree** to the request for the confidentiality order because

..... / /
**[Signature and date]**

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Direction/Order

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | Direction/Order |
| **To** | |
| **CC** | |

Karlie Dickinson <karlie.dickinson@ags.gov.au>
Tom Monks <info@tomandcolegal.com.au>

legal@ndiscommission.gov.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order |
| **Message** | Dear Parties,<br><br>Please find attached a copy of an Order and a Direction in this matter..<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 12/09/2023 | 2023-477775 | | | | Directions to file written submissions - SEALED | 2 |
| 12/09/2023 | 2023-477789 | | | | Order - Non-publication and non-disclosure - SEALED | 2 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | **)** | |
| | **)** | No: 2023/3361 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | **)** | |

Re: Vida Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 12 September 2023

**PLACE:** Perth

The Tribunal DIRECTS that:

1. **By no later than 26 September 2023**, the Applicants file with the Tribunal and give to the Respondent submissions regarding the disclosure and publication of documents required to be provided by the Respondent pursuant to section 37 of the *Administrative Appeals Tribunal Act 1975* (Cth);

2. **By no later than 3 October**, the Respondent file with the Tribunal and give to the Applicants any submissions in reply.

**……..**
**Deputy President**

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | **)** | |
| | **)** | No: 2023/3361 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | **)** | |

Re: Vida Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**ORDER**
**Sections 35 & 37 *Administrative Appeals Tribunal Act 1975* (Cth)**
**Non-Publication and Non-Disclosure**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 12 September 2023

**PLACE:** Perth

The Tribunal ORDERS that:

1. Pursuant to section 35 of the *Administrative Appeals Tribunal Act 1975* (Cth) (AAT Act) and until further order, the documents required to be provided by the Respondent under section 37(1) of the AAT Act must not be published to other than the parties, their representatives, and members of the Tribunal and staff of the Tribunal, and any person performing services for the Tribunal acting in the course of their duties.

2. Pursuant to section 37(1AE) of the AAT Act and until further order, by reason of current criminal proceedings and/or legal professional privilege, the Respondent is not required to give to the Applicants a copy of the documents filed with the Tribunal pursuant to section 37(1) of the AAT Act in the bundle marked 'Index – Confidential Tribunal Documents';

.....
**Deputy President**

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Direction/Order

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | Direction/Order |
| **To** | |
| **CC** | |

legal@ndiscommission.gov.au
Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order |
| **Message** | Dear Parties<br><br>Please find attached a copy of a Direction in this matter.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 28/09/2023 | 2023-509853 | | | | Sealed | 2 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | **)** | |
| | **)** | No: 2023/3361 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | **)** | |

Re: Vida Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 28 September 2023

**PLACE:** Perth

The Tribunal DIRECTS that the Directions made on 12 September 2023 be varied as follows:

1. In direction 1, by changing the date by which the Applicants file with the Tribunal and give to the Respondent submissions regarding the disclosure and publication of documents required to be provided by the Respondent pursuant to section 37 of the *Administrative Appeals Tribunal Act 1975* (Cth) from no later than 26 September 2023 to **no later than 17 October 2023**.

2. In direction 2, by changing the date by which the Respondent file with the Tribunal and give to the Applicants any submissions in reply from no later than 3 October 2023 to **no later than 24 October 2023**.

.....
**Deputy President**

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Direction/Order

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | Direction/Order |
| **To** | |
| **CC** | |

Karlie Dickinson <karlie.dickinson@ags.gov.au>
Tom Monks <info@tomandcolegal.com.au>

legal@ndiscommission.gov.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order |
| **Message** | Dear Parties,<br><br>Please find attached a copy of a Direction in this matter.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 17/10/2023 | 2023-541247 | | | | Sealed | 1 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | **)** | |
| | **)** | No: 2023/3361 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | **)** | |

Re: Vida Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 17 October 2023

**PLACE:** Perth

The Tribunal DIRECTS that:

1. **By no later than 31 October 2023**, the Respondent is to file with the Tribunal and serve on the Applicants written submissions in support of its application for a Stay of Proceedings.

2. **By no later than 14 November 2023**, the Applicants are to file with the Tribunal and serve on the Respondent written submissions in reply to the Respondent's application for a Stay of Proceedings.

3. The matter be listed for an interlocutory hearing as soon as practicable after 14 November 2023.

.....
**Deputy President**

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Direction/Order

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | Direction/Order |
| **To** | |
| **CC** | |

Karlie Dickinson <karlie.dickinson@ags.gov.au>
Tom Monks <info@tomandcolegal.com.au>

legal@ndiscommission.gov.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order |
| **Message** | Dear Parties<br><br>Please find attached a copy of a Direction in this matter.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Direction/Order

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | Direction/Order |
| **To** | |
| **CC** | |

Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order |
| **Message** | Dear Parties<br><br>Please find attached an amended copy of the directions dated 24 October 2023 with the paragraph numbers corrected.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 25/10/2023 | 2023-557399 | | | | Sealed | 3 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | **)** | |
| | **)** | No: 2023/3361 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | **)** | |

Re: Vida Reid
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 24 October 2023

**PLACE:** Perth

The Tribunal DIRECTS that:

1. The Directions dated 28 September 2023 and 17 October 2023 are hereby revoked.

2. **By no later than 2 November 2023**, the Respondent is to file with the Tribunal and serve on the Applicant:

   (a) written submissions, and any evidence upon which she intends to rely, in support of her application for a Stay of Proceedings dated 11 October 2023; and

   (b) any further submissions and evidence in support of her 'Request for Confidentiality Orders Under Section 35 of the *Administrative Appeals Tribunal Act 1975*' application filed on 8 August 2023.

3. **By no later than 16 November 2023**, the Applicant is to file with the Tribunal and serve on the Respondent any submissions, and any evidence upon which they intend to rely, in respect of the Respondent's applications for a Stay of Proceedings and confidentiality orders**.**

4. **By no later than 30 November 2023**, the Respondent is to file any submissions in reply or advise that she does not wish to file a reply.

5. An interlocutory hearing be listed to hear both applications as soon as practicable after 30 November 2023, or as soon as practicable after the Respondent has advised that she does not wish to file a reply.




**Deputy President**

---

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Listing Notice

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | Listing Notice |
| **To** | |
| **CC** | |

Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice |
| **Message** | Dear Ms Dickinson<br><br>Please find attached a Listing Notice in this matter.<br><br>Please note that generally listings information is publicly available.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 29/11/2023 | 2023-622944 | | | | | 1 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

Administrative Appeals Tribunal

**National Disability Insurance Scheme Division**

Our Ref: 2023/3361 Contact Officer: Natalie D

29 November 2023

Commissioner of the NDIS Quality and Safeguards Commission
PO Box 210
PENRITH NSW 2750

***Sent by email only***

Dear Sir/Madam

**APPLICANT:** **Vida Reid**
**RESPONDENT:** **Commissioner of the NDIS Quality and Safeguards Commission**

This application has been listed as shown below:

**Interlocutory Hearing by video - Stay and Confidentiality applications**

Date: Wednesday, 17 January 2024
Time: 10:00am (AWST)
Location: MS Teams Video

# Microsoft Teams meeting

**Join on your computer, mobile app or room device**
Click here to join the meeting
Meeting ID: 476 131 288 468
Passcode: wmrY3u
Download Teams | Join on the web
**Join with a video conferencing device**
530646548@vc.aat.gov.au
Video Conference ID: 132 110 156 3
Alternate VTC instructions
**Or call in (audio only)**
+61 2 9158 7123,,512258136# Australia, Sydney
Phone Conference ID: 512 258 136#
Find a local number | Reset PIN

**What happens if you do not attend?**

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Natalie D
**For the Registrar**

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Direction/Order

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | Direction/Order |
| **To** | |
| **CC** | |

Karlie Dickinson <karlie.dickinson@ags.gov.au>
Ashley.Burgess@ags.gov.au
Tom Monks <info@tomandcolegal.com.au>

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction |
| **Message** | Dear Parties,<br><br>Please find attached a copy of a Direction in this matter.<br><br>Yours sincerely, |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 17/01/2024 | 2024-23011 | | | | SAS | 3 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | **)** | |
| | **)** | No: 2023/3361 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | **)** | |

Re: Vida Reid
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

**DIRECTION**

**TRIBUNAL:** Michael Mischin, Deputy President

**DATE:** 17 January 2024

**PLACE:** Perth

The Tribunal DIRECTS:

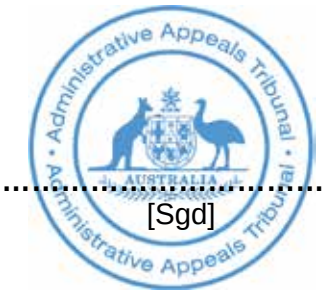
1. **Application 2023/3361 of Vida Reid** be adjourned pending the termination or resolution of criminal proceedings against her relating to matters the subject of the decision under review.

2. **Application 2023/4494 of Forward Focussed Group Pty Ltd** be adjourned pending the termination or resolution of criminal proceedings against Vida Reid referred to in paragraph 1.

3. **By no later than 7 February 2024,** the Applicant Simon Reid is to file with the Tribunal and serve on the Respondent any further submissions and evidence upon which he intends to rely in response to the Respondent's application that Application 2023/3363 of Simon Reid be adjourned or stayed pending the termination or resolution of criminal proceedings against Vida Reid referred to in paragraph 1.

4. **By no later than 28 February 2024,** the Respondent is to file with the Tribunal and serve on the Applicant Simon Reid any further submissions and evidence upon which she intends to rely in reply in support of her application for an adjournment or stay of proceedings in Applicant Simon Reid's Application for review.

5. The interlocutory hearing be relisted as soon as practicable after 28 February 2024, or as soon as practicable after the Respondent has advised that she does not wish to file submissions and evidence in reply.




.....
[Sgd]

---

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - General Correspondence

### Email

| Email Details | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Senior Associate |
| **Standard Text** | |
| **Subject Description** | General Correspondence |
| **To** | |
| **CC** | |

Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence |
| **Message** | Dear Parties,<br><br>i refer to the above matter.<br><br>The Tribunal is planning to schedule a 1 hour telephone directions hearing. Please advise the Tribunal of your availability for the month of April by COB 9 April 2024.<br><br>Yours sincerely, |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Listing Notice

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Senior Associate |
| **Standard Text** | |
| **Subject Description** | Listing Notice |
| **To** | |
| **CC** | |

Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice |
| **Message** | Dear Ms Dickinson<br><br>Please find attached a Listing Notice in this matter.<br><br>Please note that generally listings information is publicly available.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 11/04/2024 | 2024-161908 | | | | | 1 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

Administrative Appeals Tribunal

**National Disability Insurance Scheme Division**

Our Ref: 2023/3361 Contact Officer: Christie O

11 April 2024

Commissioner of the NDIS Quality and Safeguards Commission
C/- AUSTRALIAN GOVERNMENT SOLICITOR
GPO Box 2853
MELBOURNE VIC 3001

Dear Sir/Madam

**APPLICANT:** **Vida Reid**
**RESPONDENT:** **Commissioner of the NDIS Quality and Safeguards Commission**

This application has been listed as shown below:

Directions Hearing by telephone
Date: Wednesday, 8 May 2024
Time: 10:00AM (AWST)
Location: By Telephone

**What happens if you do not attend?**

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Christie O
**For the Registrar**

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Listing Notice

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Senior Associate |
| **Standard Text** | |
| **Subject Description** | Listing Notice |
| **To** | |
| **CC** | |

Karlie Dickinson <karlie.dickinson@ags.gov.au>

| | |
|---|---|
| **Subject** | 2023/4494 - RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice |
| **Message** | Dear Ms Dickinson,<br><br>Please find attached a Listing Notice in this matter. Please note this matter will be hearing together with matter 2023/3361 & 2023/3363.<br><br>Please note that generally listings information is publicly available.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 15/04/2024 | 2024-165723 | Listing Notices | Listing Notice | AUSTRALIAN GOVERNMENT SOLICITOR | | 1 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

Administrative Appeals Tribunal

**National Disability Insurance Scheme Division**

Our Ref: 2023/4494 Contact Officer: Christie O
Your Ref: 23004627

15 April 2024

Commissioner of the NDIS Quality and Safeguards Commission
C/- AUSTRALIAN GOVERNMENT SOLICITOR
GPO Box 2853
MELBOURNE VIC 3001

Dear Sir/Madam

**APPLICANT:** **Forward Focused Group Pty Ltd**
**RESPONDENT:** **Commissioner of the NDIS Quality and Safeguards Commission**

This application has been listed as shown below:

Directions Hearing by telephone
Date: Wednesday, 8 May 2024
Time: 10:00AM

**What happens if you do not attend?**

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Christie O
**For the Registrar**

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Listing Notice

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Senior Associate |
| **Standard Text** | |
| **Subject Description** | Listing Notice |
| **To** | |
| **CC** | |

Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice |
| **Message** | Dear Ms Dickinson,<br><br>Please see attached amended listing notices noting the listing on 8 May 2024 is for the below 3 matters<br><br>2023/3363 - Simon Reid and Commissioner of the NDIS Quality and Safeguards Commission<br>2023/3361- Vida Reid and Commissioner of the NDIS Quality and Safeguards Commission<br>2023/4494 - Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission<br><br>The purpose of the telephone directions hearing for the above 3 matters is to determine the status of the extraneous proceedings of the Applicants and determine the next steps to bring the matters to a hearing.<br><br>Yours sincerely, |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 11/04/2024 | 2024-161906 | | | | | 3 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

| Attached Date | Document Name |
|---|---|
| 16/04/2024 | 2023 4494 Listing Notice.doc |
| 16/04/2024 | 2023 3363 Listing Notice.doc |

Administrative Appeals Tribunal

**National Disability Insurance Scheme Division**

Our Ref: 2023/3361 Contact Officer: Christie O

16 April 2024

***Sent via email only***

Dear Parties,

**APPLICANT:** **Vida Reid**
**RESPONDENT:** **Commissioner of the NDIS Quality and Safeguards Commission**

This application has been listed as shown below:

Directions Hearing by telephone
Date: Wednesday, 8 May 2024
Time: 10:00AM
Location: By Telephone

**What happens if you do not attend?**

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Christie O
**For the Registrar**

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

Administrative Appeals Tribunal

**National Disability Insurance Scheme Division**

Our Ref: 2023/4494
Your Ref: 23004627

Contact Officer: Christie O

16 April 2024

Dear Parties,

**APPLICANT:** **Forward Focused Group Pty Ltd**
**RESPONDENT:** **Commissioner of the NDIS Quality and Safeguards Commission**

This application has been listed as shown below:

Directions Hearing by telephone
Date: Wednesday, 8 May 2024
Time: 10:00AM

**What happens if you do not attend?**

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Christie O
**For the Registrar**

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

Administrative Appeals Tribunal

**National Disability Insurance Scheme Division**

Our Ref: 2023/3363 Contact Officer: Christie O

15 April 2024

***Sent via email only***

Dear Parties,

**APPLICANT:** **Simon Reid**
**RESPONDENT:** **Commissioner of the NDIS Quality and Safeguards Commission**

This application has been listed as shown below:

Directions Hearing by telephone
Date: Wednesday, 8 May 2024
Time: 10:00AM

**What happens if you do not attend?**

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Christie O
**For the Registrar**

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Listing Notice

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Senior Associate |
| **Standard Text** | |
| **Subject Description** | Listing Notice |
| **To** | |
| **CC** | |

Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice |
| **Message** | Dear Sir/Madam<br><br>Please find attached a Listing Notice in this matter.<br><br>Please note that generally listings information is publicly available.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 08/05/2024 | 2024-202280 | | | | | 1 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

Administrative Appeals Tribunal

**National Disability Insurance Scheme Division**

Our Ref: 2023/3361, 2023/3363 & 2023/4494

Contact Officer: Christie O

8 May 2024

Dear Parties,

| | |
|---|---|
| **APPLICANT:** | **Vida Reid** |
| **RESPONDENT:** | **Commissioner of the NDIS Quality and Safeguards Commission** |

| | |
|---|---|
| **APPLICANT:** | **Simon Reid** |
| **RESPONDENT:** | **Commissioner of the NDIS Quality and Safeguards Commission** |

| | |
|---|---|
| **APPLICANT:** | **Forward Focused Group Pty Ltd** |
| **RESPONDENT:** | **Commissioner of the NDIS Quality and Safeguards Commission** |

This applications has been listed as shown below:

Directions Hearing by telephone
Date: Wednesday, 15 May 2024
Time: 11:00AM (AWST)

**What happens if you do not attend?**

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Christie O
**For the Registrar**

Telephone: (08) 6222 7200

Email: perth.registry@aat.gov.au

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Direction/Order

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Senior Associate |
| **Standard Text** | |
| **Subject Description** | Direction/Order |
| **To** | |
| **CC** | |

Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

| | |
|---|---|
| **Subject** | 2023/3361- RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction |
| **Message** | Dear Parties,<br><br>Please find attached a copy of a Direction in this matter.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 15/05/2024 | 2024-212741 | | | | sealed | 2 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | **)** | No: 2023/3361 |
| | **)** | No: 2023/3363 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | **)** | No: 2023/4494 |

Re: Vida Reid
**Applicant**

Re: Simon Reid
**Applicant**

Re: Forward Focus Group Pty Ltd
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 15 May 2024

**PLACE:** Perth

The Tribunal DIRECTS that:

1. **By no later than 5 June 2024** the Respondent file with the Tribunal and serve on each of the Applicants an updated tender bundle.

2. **On or before 26 June 2024** the Applicants file with the Tribunal and serve on the Respondent a Statement of Facts, Issues and Contentions and any further evidence on which the Applicants propose to rely at the hearing.

3. **On or before 17 July 2024** the Respondent file with the Tribunal and serve on the Applicants a Statement of Facts, Issues and Contentions and any further evidence on which the Respondent proposes to rely at the hearing.

4. **On or before 31 July 2024** the Applicants may file with the Tribunal and serve on the Respondent any submissions in reply, or advise the Tribunal and Respondent that they do not propose to file further submissions.

5. **On or before 7 August 2024** the parties file with the Tribunal and exchange hearing certificates for the months of September to December 2024 inclusive.




**Deputy President**

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Direction/Order

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Senior Associate |
| **Standard Text** | |
| **Subject Description** | Direction/Order |
| **To** | |
| **CC** | |

Oliver.Young@ags.gov.au
Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction |
| **Message** | Dear Parties,<br><br>Please find attached a copy of a Direction in this matter.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 17/06/2024 | 2024-267095 | | | | | 1 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | **)** | No: 2023/3361 |
| | **)** | No: 2023/3363 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | **)** | No: 2023/4494 |

Re: Vida Reid
**Applicant**

Re: Simon Reid
**Applicant**

Re: Forward Focused Group Pty Ltd
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**DIRECTION**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 17 June 2024

**PLACE:** Perth

The Tribunal DIRECTS that the Directions made on 15 May 2024 be varied as follows:

1. In direction 2 by changing the date that the Applicants file with the Tribunal and serve on the Respondent a Statement of Facts, Issues and Contentions and any further evidence on which the Applicants propose to rely at the hearing from 'On or before 26 June 2024' to '**On or before 10 July 2024**'.

2. In direction 3 by changing the date that the Respondent file with the Tribunal and serve on the Applicants a Statement of Facts, Issues and Contentions and any further evidence on which the Respondent proposes to rely at the hearing from 'On or before 17 July 2024' to '**On or before 31 July 2024**'.

3. In direction 4 by changing the date that the Applicants may file with the Tribunal and serve on the Respondent any submissions in reply, or advise the Tribunal and Respondent that they do not propose to file further submissions, from 'On or before 31 July 2024 to '**On or before 7 August 2024**'.

4. In direction 5 by changing the date that the parties file with the Tribunal and exchange hearing certificates for the months of September to December 2024 inclusive from ‘On or before 7 August 2024’ to ’**On or before 14 August 2024**’.

**Deputy President**

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - General Correspondence

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | General Correspondence |
| **To** | |
| **CC** | |

oliver.young@ags.gov.au
Karlie Dickinson <karlie.dickinson@ags.gov.au>
Tom Monks <info@tomandcolegal.com.au>

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence |
| **Message** | Dear Mr Monks,<br><br>I refer to your email of 1 July 2024.<br><br>The Deputy President has confirmed the Direction is correct.<br><br>The Respondent should disclose a single updated Bundle containing both the documents for Ms Vida Reid and Mr Simon Reid's applications.<br><br>The Deputy President would like the applicants to be served separate copies ie a copy of the combined T-documents be provided to each Applicant.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Direction/Order

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | Direction/Order |
| **To** | |
| **CC** | |

Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order |
| **Message** | Dear Parties,<br><br>Please find attached a copy of an Order in this matter.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 30/07/2024 | 2024-341473 | | | | | 1 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | **)** | No: 2023/3361 |
| | **)** | No: 2023/3363 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | **)** | No: 2023/4494 |

Re: Vida Reid
**Applicant**

Re: Simon Reid
**Applicant**

Re: Forward Focus Group Pty Ltd
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
**Respondent**

**ORDER**
**Sections 35(4) & 37 *Administrative Appeals Tribunal Act 1975* (Cth)**
**Non-Publication and Non-Disclosure**

**TRIBUNAL:** Deputy President Mischin

**DATE:** 26 July 2024

**PLACE:** Perth

The Tribunal ORDERS that:

1. Pursuant to section 37(1AE) of the AAT Act, and until further order, the Respondent is not required to give to the Applicants a copy of the document filed with the Tribunal pursuant to section 37(1) of the AAT Act intituled 'Tactical Intelligence Report – Project Archer' dated 18 August 2022, because disclosure of the document would identify internal investigative processes which could prejudice future investigations.

2. Pursuant to section 35(4) of the *Administrative Appeals Tribunal Act 1975* (Cth) (AAT Act), and until further order, the document intituled 'Tactical Intelligence Report – Project Archer' dated 18 August 2022 must not be published or disclosed to other than members of the Tribunal and staff of the Tribunal acting in the course of their duties.

.....
**Deputy President**

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Listing Notice

### Email

**Email Details**

| | |
|---|---|
| **From** | sydney.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | Listing Notice |
| **To** | |
| **CC** | |

Karlie Dickinson <karlie.dickinson@ags.gov.au>
Tom Monks <info@tomandcolegal.com.au>

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice |
| **Message** | Dear parties,<br><br>Please find attached a Listing Notice for a listing in this matter.<br><br>May each party please confirm their appearance and provide the best contact number for the listing. Should either party not be available to attend the anticipated event, it is requested the parties confer and provide the Tribunal with mutual availability to reschedule this listing.<br><br>Yours sincerely, |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 26/09/2024 | 2024-443584 | | | | | 1 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

Administrative Appeals Tribunal

**National Disability Insurance Scheme Division**

Our Ref: 2023/3361 Contact Officer: Rachel S
Your Ref:

26 September 2024

Dear Sir/Madam

APPLICANT: Vida Reid
RESPONDENT: Commissioner of the NDIS Quality and Safeguards Commission

This application has been listed as shown below:

Case Management Directions Hearing by telephone
Date: Thursday, 3 October 2024
Time: 9:00AM Perth; 11:00AM Sydney

**What happens if you do not attend?**

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Daniel K
**For the Registrar**

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - General Correspondence

### Email

**Email Details**

| | |
|---|---|
| **From** | perth.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Senior Tribunal Officer |
| **Standard Text** | |
| **Subject Description** | General Correspondence |
| **To** | |
| **CC** | |

Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

| | |
|---|---|
| **Subject** | 2023/3361, 2023/3363 & 2023/4494 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission |
| **Message** | Dear Parties,<br><br>Please find attached a copy of the Tribunal's correspondence dated 27 September 2024.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 27/09/2024 | 2024-445758 | | | | | 1 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

Administrative Appeals Tribunal

**National Disability Insurance Scheme Division**

Our Ref: 2023/3361, 2023/3363 &
2023/4494

27 September 2024

Dear Parties,

**APPLICANT:** **Reid (and Reid and Fast Forward Group P/L)**
**RESPONDENT:** **Commissioner of the NDIS Quality and Safeguards Commission**

I am writing to you about the applications for review of decisions which were lodged in this registry. We have transferred it to our Brisbane registry. Please direct all future correspondence and enquiries to:

District Registrar
Administrative Appeals Tribunal
GPO Box 9955
Brisbane, QLD, 4001

Tel: (07) 3052 3000
Email Brisbane.registry@aat.gov.au

The file number for the application will stay the same.

**Do you want to know more?**

More information about us and how we conduct reviews is available on our website (www.aat.gov.au).

If you want more information or assistance, call us on **1800 228 333***.

Yours sincerely

Clare M
**For the Registrar**

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

* You will be connected to the AAT office in your capital city. Residents of northern NSW (postcodes 2460–2490) will be connected to the Brisbane office and residents of the Northern Territory will be connected to the Adelaide office. Calls from landlines are free. You may be charged for calls from mobile phones or payphones.

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Listing Notice & Direction

### Email

**Email Details**

| | |
|---|---|
| **From** | sydney.registry@aat.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | Listing Notice & Direction |
| **To** | |
| **CC** | |

Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice & Direction |
| **Message** | Dear parties,<br><br>Please find attached Directions made and a Listing Notice for a hearing in this matter.<br><br>May each party please confirm their appearances and provide the best contact number for the hearing. Should either party not be available to attend the anticipated event, it is requested the parties confer and provide the Tribunal with mutual availability to reschedule this listing.<br><br>Yours sincerely, |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 03/10/2024 | 2024-454608 | | | | | 1 |
| 03/10/2024 | 2024-454564 | | | | S&S | 1 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

Administrative Appeals Tribunal

**National Disability Insurance Scheme Division**

Our Ref: 2023/3361; 2023/3363; 2023/4494
Your Ref:

Contact Officer: Brisbane R

3 October 2024

Dear Sir/Madam

APPLICANT: Vida Reid
RESPONDENT: Commissioner of the NDIS Quality and Safeguards Commission

This application has been listed as shown below:

Interlocutory Hearing by video - Stay application
Date: Monday, 25 November 2024
Time: 12:00PM Brisbane time; 10:00AM Perth time

**Microsoft Teams** Need help?
**Join the meeting now**

---

**Dial in by phone**
+61 2 9158 7123,,113479234# Australia, Sydney
Find a local number
Phone conference ID: 113 479 234#
**Join on a video conferencing device**
Tenant key: teams@tribunal.onpexip.com
Video ID: 132 110 423 7
More info

**What happens if you do not attend?**

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Daniel K
**For the Registrar**

Telephone: (07) 3052 3000
Email: brisbane.registry@aat.gov.au

# Administrative Appeals Tribunal

| | | |
|---|---|---|
| **ADMINISTRATIVE APPEALS TRIBUNAL** | **)** | |
| | **)** | No: 2023/3361 2023/3363 2023/4494 |
| **NATIONAL DISABILITY INSURANCE SCHEME DIVISION** | **)** | |

Re: Vida Reid
Applicant

Re: Simon Reid
**Applicant**

Re: Forward Focused Group Pty Ltd
**Applicant**

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

**DIRECTION**

**TRIBUNAL:** Deputy President G Lazanas

**DATE:** 3 October 2024

**PLACE:** Perth

The Tribunal DIRECTS:

1. the Direction dated 17 June 2024 (in relation to all proceedings, namely, 2023/3361, 2023/3363 and 2023/4494) is vacated.

2. in relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **24 October 2024**, the Applicants shall file with the Tribunal and serve on the Respondent any written submissions and evidence in relation to their stay application and request for confidentiality regarding a medical report.

3. in relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **14 November 2024**, the Respondent shall file with the Tribunal and serve on the Applicants any written submissions and evidence in relation to the Applicants' stay application and request for confidentiality regarding a medical report.

4. in relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **21 November 2024**, the Applicants shall file with the Tribunal and serve on the Respondent any written submissions in reply or notify the Tribunal and the Respondent in writing that there are no submissions in reply.

5. the matter be listed for an interlocutory hearing regarding the Applicants' stay application and request for confidentiality regarding a medical report on **25 November 2024** at **10:00AM** (Perth time).

**……[SGD]……..**
Deputy President G Lazanas

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

Administrative Review Tribunal

Our Ref: 2023/3361 Contact Officer: MST TL B

28 October 2024

Commissioner of the NDIS Quality and Safeguards Commission
PO Box 210
PENRITH NSW 2750

Dear Sir/Madam

**APPLICANT:** **Vida Reid**
**RESPONDENT:** **Commissioner of the NDIS Quality and Safeguards Commission**

This application has been listed as shown below:

Directions Hearing by telephone
Date: Wednesday, 6 November 2024
Time: 10:00AM

**What happens if you do not attend?**

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 99 of the Administrative Review Tribunal Act

Yours sincerely

Madeleine S
**For the Registrar**

Telephone: 1800 228 333
Email: brisbane.registry@art.gov.au

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - General Correspondence

### Email

**Email Details**

| | |
|---|---|
| **From** | brisbane.registry@art.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | General Correspondence |
| **To** | |
| **CC** | |

Karlie Dickinson <karlie.dickinson@ags.gov.au>

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence |
| **Message** | Dear Ms Dickinson,<br><br>I attach all correspondence the Tribunal has received from the Applicant's new representative, and an email from Ms Reid notifying the Tribunal that Tom & Co no longer act for her.<br><br>Kind Regards, |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

| Attached Date | Document Name |
|---|---|
| 28/10/2024 | 241023 Letter to ART request for extension of time.pdf |

WEEKS & CO.
BARRISTERS & SOLICITORS

PO Box, 805 Canning Bridge
Applecross WA 6153

Suite C2
1 The Esplanade
Mt Pleasant WA 6153

E peter@weeksco.com.au
T (08) 6141 3178

Our Ref: PWW:2810-24

23 October 2024

Administrative Review Tribunal
Brisbane Registry

**By online lodgement**

Dear Sir/Madam

**NATIONAL DISABILITY INSURANCE SCHEME DIVISION: No: 2023/3361; No 2023/3363; No 2023/4494**

1. We act for the applicant Ms Vida Reid in respect of the above proceedings.

2. We understand the firm Tom & Co previously acted for our client, together with the other applicants, Simon Reid and Forward Focused Group Pty Ltd.

3. We refer to our emails to the Registry dated 11 and 18 October 2024 within which we requested copies of the documents filed by the parties in the proceedings.

4. We also indicated in our correspondence that we may seek an extension of time to comply with orders requiring our client to file materials in support of the application to stay the proceedings with respect to her by 24 October 2024.

5. As noted in those emails, there have been telephone calls from Charles Dallimore of this office to the Tribunal following up those matters. We understood the case manager would return our call to discuss those matter however that has not occurred.

6. In accordance with 4.31 of the Administrative Review Tribunal (Common Procedures) Practice Direction 2024, we write to request further time to comply with those orders.

7. We request an extension on the orders to 21 November 2024.

8. The reason for the request is that we have only recently been engaged in relation to this matter and do not yet have a copy of the documents filed by the parties in the proceedings.



Liability limited by a scheme approved under Professional Standards Legislation

9. Given our recent engagement, we have not yet confirmed with the other parties whether they consent to this request. We will endeavour to do so as soon as possible and update the Tribunal accordingly.

Yours faithfully



Peter Weeks
**Principal**
E: peter@weeksco.com.au

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Listing Notice

### Email

**Email Details**

| | |
|---|---|
| **From** | brisbane.registry@art.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | Listing Notice |
| **To** | |
| **CC** | |

Karlie Dickinson <karlie.dickinson@ags.gov.au>
charles@weeksco.com.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice |
| **Message** | Dear Parties,<br><br>This matter has been listed for a directions hearing by telephone on 6 November 2024 at 10:00AM AEST, to deal with Mr Dallimore's request for an extension to file and serve material, and his request that all the parties' material be re-served upon the applicant. The Tribunal is also open to considering any proposed directions made with the consent of the parties, to avoid the need for a directions hearing.<br><br>Kindly confirm appearances no later than 4 November 2024.<br><br>Yours sincerely |
| **Sent By** | Madeleine S s47E(c) |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 28/10/2024 | 2024-491309 | | | | | 1 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Hearing/Conference vacated

### Email

**Email Details**

| | |
|---|---|
| **From** | brisbane.registry@art.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | Hearing/Conference vacated |
| **To** | |
| **CC** | |

Tom Monks <info@tomandcolegal.com.au>
charles@weeksco.com.au
Karlie Dickinson <karlie.dickinson@ags.gov.au>

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Hearing/Conference vacated |
| **Message** | Dear Parties,<br><br>Due to an administrative error of the Tribunal, the directions hearing listed for tomorrow, 6 November 2024, cannot go ahead, and has therefore been vacated. We apologise for the inconvenience this may cause.<br><br>An email with an updated listing notice will follow shortly.<br><br>Yours sincerely |
| **Sent By** | Madeleine S s47E(c) |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Listing Notice

### Email

**Email Details**

| | |
|---|---|
| **From** | brisbane.registry@art.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | Listing Notice |
| **To** | |
| **CC** | |

Karlie Dickinson <karlie.dickinson@ags.gov.au>
charles@weeksco.com.au
Tom Monks <info@tomandcolegal.com.au>

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice |
| **Message** | Dear Parties,<br><br>Please find attached a Listing Notice in this matter. Kindly confirm your appearances no later than 12 November 2024.<br><br>Please note that generally listings information is publicly available.<br><br>Yours sincerely |
| **Sent By** | Madeleine S s47E(c) |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 06/11/2024 | 2024-507991 | | | | | 1 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

Our Ref: 2023/3361; 2023/3363; 2023/4494

Contact Officer: MST TL B

6 November 2024

Dear Sir/Madam

| | |
|---|---|
| APPLICANTS: | Vida Reid |
| AND | Simon Reid |
| AND | Forward Focused Group Pty Ltd |
| RESPONDENT: | Commissioner of the NDIS Quality and Safeguards Commission |

This application has been listed as shown below:

**Directions Hearing by telephone**
Date: Thursday, 14 November 2024
Time: 10:00AM AEST

**What happens if you do not attend?**

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 99 of the Administrative Review Tribunal Act

Yours sincerely

Madeleine S
**For the Registrar**

Telephone: 1800 228 333
Email: brisbane.registry@art.gov.au

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Direction/Order

### Email

**Email Details**

| | |
|---|---|
| **From** | brisbane.registry@art.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Associate |
| **Standard Text** | |
| **Subject Description** | Direction/Order |
| **To** | |
| **CC** | |

Tom Monks <info@tomandcolegal.com.au>
charles@weeksco.com.au
Karlie Dickinson <karlie.dickinson@ags.gov.au>

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order |
| **Message** | Dear Parties,<br><br>Please find attached a copy of a Direction in this matter.<br><br>Yours sincerely |
| **Sent By** | Madeleine S[redacted] |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

| Date Generated | Document No. | Document Type | Document Title | Recipient | Description | Rev No. |
|---|---|---|---|---|---|---|
| 14/11/2024 | 2024-521829 | | | | SS | 2 |

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

**ADMINISTRATIVE REVIEW TRIBUNAL** )
)
) No: 2023/3361, 2023/3363 & 2023/4494
)

Re: Vida Reid
Applicant

Re: Simon Reid
Applicant

Re: Forward Focused Group Pty Ltd
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

**TRIBUNAL:** Deputy President K McMillan KC

**DATE:** 14 November 2024

**PLACE:** Brisbane

The Tribunal DIRECTS:

1. The Direction dated 3 October 2024 is vacated.

2. The Interlocutory hearing listed for 25 November 2024 is vacated.

3. In relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **13 December 2024**, the Applicants shall file with the Tribunal and serve on the Respondent any written submissions and evidence in relation to their stay application and request for confidentiality regarding a medical report.

4. In relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **10 January 2025**, the Respondent shall file with the Tribunal and serve on the Applicants any written submissions and evidence in relation to the Applicants' stay application and request for confidentiality regarding a medical report.

5. in relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **24 January 2025**, the Applicants shall file with the Tribunal and serve on the Respondent any written submissions in reply or notify the Tribunal and the Respondent in writing that there are no submissions in reply.

6. the matter be listed for an interlocutory hearing regarding the Applicants' stay application and request for confidentiality regarding a medical report no earlier than **10 February 2025**.

.....[SGD].....
Deputy President K McMillan KC

## NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 100 of the *Administrative Review Tribunal Act 2024*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:
   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

5. If you have been directed to give the Tribunal a Hearing Certificate, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Direction/Order

### Email

**Email Details**

| | |
|---|---|
| **From** | brisbane.registry@art.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Member Support Officer - Legal |
| **Standard Text** | |
| **Subject Description** | Direction/Order |
| **To** | |
| **CC** | |

karlie.dickinson@ags.gov.au
reid.simon4@gmail.com
vida_reid@yahoo.com

| | |
|---|---|
| **Subject** | 2023/3361 - 2023/3363 - 2023/4494 - RE Reid / Superior Care Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order |
| **Message** | Dear Parties,<br><br>Please find attached a copy of a Direction in this matter.<br><br>Please note that 2023/3361 but this direction also refers to the linked cases of 2023/3363 and 2023/4494.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

| Attached Date | Document Name |
|---|---|
| 08/09/2025 | Reid and Foward Focused Group Pty Ltd and the Commisioner of the NDIS Quality and Safeguards Commission - Directions 8 September 2025.pdf |

Administrative Review Tribunal

**ADMINISTRATIVE REVIEW TRIBUNAL**
**BRISBANE REGISTRY**

) No: 2023/3361
) No: 2023/3363
) No: 2023/4494

Re: VIDA REID
**Applicant**

And: COMMISSIONER OF THE NDIS SAFEGUARDS COMMISSION
**Respondent**

Re: SIMON REID
**Applicant**

And: COMMISSIONER OF THE NDIS SAFEGUARDS COMMISSION
**Respondent**

Re: FORWARD FOCUS GROUP PTY LTD
**Applicant**

And: COMMISSIONER OF THE NDIS SAFEGUARDS COMMISSION
**Respondent**

## DIRECTIONS

**TRIBUNAL:** Deputy President K McMillan KC

**DATE:** 8 September 2025

**PLACE:** Brisbane

1. By 4pm on Wednesday 10 September 2025, the applicant, Mr Simon Reid, file and serve any submissions in response to the application of the applicant Vida Reid lodged and served on 16 August 2025.

2. By 4pm on Wednesday 17 September 2025, the Respondent file and serve any submissions in response to the application of the applicant Vida Reid lodged and served on 16 August 2025 and any submissions lodged by the applicant Simon Reid, pursuant to Order 1 above.

3. By 4pm on Tuesday 23 September 2025, the applicant Vida Reid file and serve any further submissions in reply to submissions lodged pursuant to Orders 1 and 2 above.

4. Thereafter, the application made by the applicant Vida Reid on 16 August 2025 and any subsequent submissions received in accordance with Orders 1, 2 and 3 above to be determined on the papers.

**……..……..[SGD]……..……...**
**Deputy President K McMillan KC**

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 100 of the *Administrative Review Tribunal Act 2024*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

Administrative Review Tribunal

Case Ref: 2023/3361
2023/3363
2023/4494
Your Ref:

Contact Officer: Hayley B

20 January 2026

Dear Parties,

APPLICANT: Vida Reid
APPLICANT: Simon Reid / Forward Focus Group Pty Ltd
RESPONDENT: Commissioner of the NDIS Quality and Safeguards Commission

This application has been listed as shown below:

Interlocutory Hearing - Joinder application
Date: Friday, 20 March 2026
Time: 11:00AM (AEST) / 9:00AM (AWST)
Location: Microsoft Teams

**Microsoft Teams meeting**
**Join:** https://teams.microsoft.com/meet/48826794777901?p=L3oPYVxtRjjV9Xft9o
Meeting ID: 488 267 947 779 01
Passcode: M6fi28zD

**What happens if you do not attend?**

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 99 of the Administrative Review Tribunal Act

Yours sincerely

Hayley B
**For the Registrar**

Telephone: 1800 228 333
Email: brisbane.registry@art.gov.au

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - Listing Notice

### Email

**Email Details**

| | |
|---|---|
| **From** | brisbane.registry@art.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Member Support Officer - Legal |
| **Standard Text** | |
| **Subject Description** | Listing Notice |
| **To** | |
| **CC** | |

reid.simon4@gmail.com
karlie.dickinson@ags.gov.au
vida_reid@yahoo.com

s47E(d) art.gov.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice |
| **Message** | Dear Parties,<br><br>Please find attached a Listing Notice in this matter enclosing details of the upcoming interlocutory hearing.<br><br>Generally listings information is publicly available.<br><br>Ms Reid, please note that the Tribunal will ensure that a Farsi interpreter will be on standby should you wish for communications to be translated at any point in the hearing.<br><br>Yours sincerely |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

| Attached Date | Document Name |
|---|---|
| 20/01/2026 | 2023.3361 - 2023.3363 - 2023.4494 - Reid and FFG v NDIA QSC listing notice.pdf |

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - General Correspondence

### Email

**Email Details**

| | |
|---|---|
| **From** | brisbane.registry@art.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Member Support Officer - Legal |
| **Standard Text** | |
| **Subject Description** | General Correspondence |
| **To** | |
| **CC** | |

reid.simon4@gmail.com
craig.land@ags.gov.au
karlie.dickinson@ags.gov.au
vida_reid@yahoo.com

s47E(d) art.gov.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence |
| **Message** | Dear Parties,<br><br>The Tribunal received correspondence on 9 March 2026 from Ms Vida Reid advising that she is withdrawing the interlocutory application in matter 2023/3361. I further note that correspondence from Mr Simon Reid confirms that the interlocutory application is unrelated to matters 2023/3363 and 2023/4494.<br><br>Given the withdrawal, the Tribunal seeks the views of the parties as to whether the hearing on Friday 20 March 2025 to hear the interlocutory application to sever the joint proceedings for matters 2023/3361 and 2023/3363 be heard on the papers.<br><br>Pending the disposal of that application, the above matters will be listed for a substantive hearing.<br><br>Should parties have any questions or concerns, please contact the Tribunal by way of reply email.<br><br>Yours sincerely, |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - General Correspondence

### Email

**Email Details**

| | |
|---|---|
| **From** | brisbane.registry@art.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Member Support Officer - Legal |
| **Standard Text** | |
| **Subject Description** | General Correspondence |
| **To** | |
| **CC** | |

craig.land@ags.gov.au
reid.simon4@gmail.com
vida_reid@yahoo.com

karlie.dickinson@ags.gov.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence |
| **Message** | Dear Parties,<br><br>I refer to Simon Reid's email dated 6 April 2026 and wish to advise that the decision regarding the severance application remains under consideration.<br><br>The Tribunal acknowledges that there have been several submissions made in relation to this application and for the avoidance of doubt wishes to confirm that the following submissions are being considered in the decision:<br>- Vida Reid Short Direction Submission dated 8 March 2026<br>- Vida Reid Reply dated 19 March 2026<br>- Simon Reid Short Directions Submission dated 6 March 2026<br>- Simon Reid Reply Dated 19 MArch 2026<br>- Respondent Submission to Stay dated 17 September 2025<br>- Respondent Supplementary Submission dated 19 March 2026<br><br>I confirm that the above submissions are in support of Ms Vida Reid's Application to Sever filed 16 August 2025.<br><br>Should parties have any concerns to the above, please contact the Tribunal by way of reply email.<br><br>Yours sincerely, |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## - General Correspondence

### Email

**Email Details**

| | |
|---|---|
| **From** | brisbane.registry@art.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Member Support Officer - Legal |
| **Standard Text** | |
| **Subject Description** | General Correspondence |
| **To** | |
| **CC** | |

Isabelle.Macdonald@ags.gov.au
Craig.Land@ags.gov.au
Karlie.Dickinson@ags.gov.au
reid.simon4@gmail.com
vida_reid@yahoo.com

legal@ndiscommission.gov.au

| | |
|---|---|
| **Subject** | 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence |
| **Message** | Dear Parties,<br><br>The Tribunal wishes to advise that the recent application for non-disclosure orders filed by the Respondent in the above matter has been put before Deputy President for consideration. Parties will receive correspondence from the Tribunal of the outcome in due course.<br><br>Yours sincerely, |
| **Sent By** | |
| **Date** | |
| **Time** | |

### Attachments

**Documents Generated in TRACS**

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

# AAT Tribunal Record and Case System

## 2023/4494 RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission

## 01/09/2025 - Direction/Order

### Email

**Email Details**

| | |
|---|---|
| **From** | brisbane.registry@art.gov.au |
| **Security Classification** | SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy |
| **Position** | Member Support Officer - Legal |
| **Standard Text** | |
| **Subject Description** | Direction/Order |
| **To** | |
| **CC** | |

vida_reid@yahoo.com
reid.simon4@gmail.com
karlie.dickinson@ags.gov.au

| | |
|---|---|
| **Subject** | 2023/4494 - RE Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order |
| **Message** | Dear Parties,<br><br>Please find attached a copy of a Direction in this matter, together with a copy of a covering letter accompanying the Direction.<br><br>Yours sincerely |
| **Sent By** | Hayley B[redacted] |
| **Date** | 01/09/2025 |
| **Time** | 2:58PM |

### Attachments

**Documents Generated in TRACS**

**Received Documents in TRACS**

**Written Reasons for Decision**

**Other Documents (not saved in TRACS)**

| Attached Date | Document Name |
|---|---|
| 01/09/2025 | 2023-3361 and 2023-4494 - Direction 1 September 2025 .pdf |

| | | |
|---|---|---|
| **ADMINISTRATIVE REVIEW TRIBUNAL**<br>**BRISBANE REGISTRY** | **)**<br>**)**<br>**)** | No: 2023/3361<br><br>No: 2023/4494 |

Re: **VIDA REID**
Applicant

**FORWARD FOCUSED GROUP PTY LTD**
Applicant

And: **COMMISSIONER OF THE NATIONAL DISABILITY AND SAFEGUARD COMMISION**
Respondent

**DIRECTION**

**TRIBUNAL:** Deputy President Kathryn McMillan KC

**DATE:** 1 September 2025

**PLACE:** Brisbane

The Tribunal DIRECTS:

1. These proceedings are listed for a directions hearing by telephone at 12:30pm AEST on 5 September 2025.

**…….[SGD]…….**
**Deputy President K McMillan KC**

**NOTES TO DIRECTION**

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 100 of the *Administrative Review Tribunal Act 2024*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.